

11th City Council
35th Regular Session
Series of 1997

Republika ng Pilipinas
LUNGSOD NG DABAW
Tanggapan ng Sangguniang Panlungsod
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EXCERPT FROM THE MINUTES OF THE REGULAR SESSION OF THE SANGGUNIAN
PANLUNGSOD, CITY OF DAVAO, HELD ON FRIDAY, SEPTEMBER 12, 1997.

PRESENT:

Councilor Tomas J. Monteverde, IV, Acting Presiding
Officer

Councilor Pilar C. Braga
Councilor Aristee V. R. Albay
Councilor Leonardo R. Avila, III
Councilor Nilo G. Abellera
Councilor Antonio H. Vergara
Councilor Rene V. Galope
Councilor Marlene A. Librado
Councilor Danilo C. Dayanghirang
Councilor Diosdado A. Mahipus
Councilor Pedro R. Salvador
Councilor Nenita R. Orcullo
Councilor Cornelio C. Reta, III
Councilor Alfredo H. Vergara
Councilor Valentino C. Banzon
Councilor Frances A. Robillo
Councilor Victorie S. Advincula
Councilor Myrna L'Dalodo-Ortiz
Councilor Shane L. Dolor
Councilor Paz C. Mata
Councilor Isidro T. Ugab
Councilor Reynaldo P. Reyes
Councilor Salvador V. Caingles
Councilor Maria Margarita B. Peloton
Councilor Dioscore B. Sampaga, Jr.

ON OFFICIAL BUSINESS:

Vice Mayor Benjamin C. de Guzman

ON LEAVE:

Councilor Bonifacio E. Militar

* * *

RESOLUTION NO. 12875

The proposed Cockfighting Code of Davao City duly recommended by the Committee on Games and Amusement for approval, was presented for consideration and appropriate action of the Body by Councilor Alfredo H. Vergara, Chairman of the Committee on Games and Amusement.

Councilor Vergara read into the record the explanatory note of the said Code, as follows:

"WHEREAS, Republic Act 7160 otherwise known as the Local Government Code of 1991 with specific reference to Section 17 Article 24 of the Rules and

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Resolution No. 12875,
Ordinance No. 5003,
Series of 1997, cont'd.:

Regulations Implementing the Local Government Code mandates the transfer of functions and responsibilities from the National Government Agencies (NGAs) to the Local Government Units (LGUs);

WHEREAS, in compliance with the above-mentioned section of the Code, Presidential Executive Order Nos. 503 and 507, both Series of 1992 and Memorandum of Agreement executed in January, 1993 by and between the Philippine Gamefowl Commission and the City Government of Davao."

He further emphasized that the passage of this Code is long overdue considering that the authority for licensing and permit to hold cockfights under the Local Government Code has now been devolved from the National Government to the Local Government, pursuant to the pertinent provisions of the Local Code of 1991 and other Executive issuances. And, in order therefore to systematize and rationalize cockfighting in the City of Davao it is imperative that this proposed Cockfighting Code of Davao City shall now be approved and implemented.

Councilor Reynaldo P. Reyes proposed to amend Sec. 13 of the proposed Code particularly specifying therein the persons to be penalized for certain violations of the Cockfighting Code in such a way that the one liable should be the President and/or General Manager in case of corporation, the Manager or General Partner in case of partnership and the Proprietor or Owner in case of single proprietorships. Councilor Alfredo H. Vergara accepted such amendment so that Sec. 13 should now read as follows, to wit:

"SEC. 13.- Penal Clause - The President or General Manager of a corporation, the Manager or General Partner of a partnership, or the Proprietor or Owner of a Single Proprietorship be held liable for any violation of this Ordinance and shall be penalized accordingly. Any violation of this ordinance shall be penalized by a fine not exceeding the amount of P2,000.00 or as imprisonment of not more than one (1) year, or both in the discretion of the Court, and the violator's cocks, hens, eggs, and all bets involved in the unlawful activity shall be confiscated in favor of the City Government, turned over to the City Agriculturist and shall be disposed of by the City Mayor in the manner provided by law, rules and regulations."

Councilor Advincula likewise, amended a portion of the Cockpit and Cockfighting Rules and Regulations, particularly sub-paragraph "D" thereof removing the phrase "by the Mayor" which provision shall now read as follows, viz:

"Sec. 3.- d) Licensing of Cockpits - Subject to the provisions of Book II of Republic Act 7160, the Sangguniang Panlungsod shall enact an Ordinance authorizing the issuance of licenses to operate cockpits in the City of Davao pursuant to the provisions of paragraph (v), subsection (3) Section (a), Article 99 of the Local Government Code of 1991".

Considering that there are no other amendments introduced on the floor, Councilor Alfredo H. Vergara proposed for the final

Resolution No. 12875,
Ordinance No. 5003,
Series of 1997, cont'd.:

passage and approval of the COCKFIGHTING CODE OF DAVAO CITY.

After careful deliberation, on motion of Councilor Alfredo H. Vergara, duly and jointly seconded by Councilors Pilar V. Braga, Rene V. Galope, Paz C. Mata, Antonio H. Vergara, Frances A. Robillo, Danilo C. Dayanghirang, Pedro R. Salvador, co-sponsored and as amended by Councilors Reynaldo P. Reyes and Victorio S. Advincula, it was

RESOLVED, AS IT IS HEREBY RESOLVED, To approve an Ordinance entitled:

ORDINANCE NO. 5003

AN ORDINANCE PROMULGATING THE RULES/REGULATIONS AND PROVIDING FOR THE FEES IN THE LICENSING, CONSTRUCTION, ESTABLISHMENT, OPERATION AND MAINTENANCE OF COCKPITS AND COCKFIGHTING IN THE CITY OF DAVAO AND PRESCRIBING THE PENALTIES FOR THE VIOLATIONS.

Be it Ordained by the Sangguniang Panlungsod, City of Davao, that:

SEC. 1.- Title of the Ordinance - "COCKFIGHTING CODE OF DAVAO CITY".

SEC. 2.- Definition of Terms - As used in this Ordinance, the following terms shall be understood, Construed and applied, as follows:

- a) Cockfighting (Sabong) - Shall embrace and mean the commonly known game or term "Cockfighting derby", "pintakasi", "Tupada", or its equivalent terms in different Philippine localities.
- b) Cockpit (Sabongan) - The properly enclosed or fenced premises or compound provided with one or more gates or door for definite points of entrance and exit and licensed in accordance herewith for the holding of cockfighting derby, pintakasi, tupada or its equivalent terms in different Philippine localities.
- c) Cockfight (soltada) - The actual fight or physical combat of two (2) pitted or evenly matched gamecocks, where bets on either side are laid.

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Resolution No. 12875,
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Series of 1997, cont'd.:

- d) International Derby - Means a cockfight promotion with participants from different nations.
- e) National Derby - Means a cockfitht promotion with nationwide participation.
- f) Regional Derby - Means a cockfight promotion with participants from a particular region.
- g) Regular Cockfights - Means a cockfight held on Sundays and/or Legal Holidays.
- h) Special Cockfitht - Means a cockfight held on days other than Sundays and Legal Holidays for special purposes.
- i) Special Permit - Means a permit secured from the Sangguniang Panlungsod to hold cockfighting on days other than Sundays and Legal Holidays.
- j) Cockpit Manager - A person who professionally, regular and habitually manages a cockpit and cockfights therein. He may or may not be owner of the cockpit himself.
- k) Referee (Sentenciador) - A person who watches and oversees the progress of the cockfight and decides its results by announcing the winner or declaring a draw or no contest game.
- l) Bet Manager (Kasador) - A person who calls and takes care of bets from owners of both gamecocks and those of other bettors before he orders commencement of the cockfight and thereafter, distributes winning bets to the winners after deducting a certain commission.
- m) Bet-Taker (Kristo) - A person who participates in cockfights and with the use of money or other things of value, bets with other bettors, or through other bet-takers and win or losses his bets depending upon the result of the cockfight as announced by the referee or sentenciador.

Resolution No. 12875,
Ordinance No. 5003,
Series of 1997, cont'd.:

- n) Gaffer (Mananari) - A person knowledgeable in the technique of arming fighting cocks with gaff or gaffs on either or both legs.
- o) Handler (Soltador) - A person who personally takes physical custody and control, inside the area of a pitted gamecock and who actually releases the same for actual fight and combat in a cockfight.
- p) Promoter - A person licensed by the Sangguniang Panlungsod as such, who is engaged in the convening, meeting, holding and celebration of specially programmed and arranged cock-fighting like local and international derbies or competitions, special mains or matches or encounter, pintakasi and ordinary fights or hackfights.
- q) Gamecock - Refers to domesticated fowls, whether imported or locally bred, as well as the native fighting cock indigenous to the country, especially bred, trained and conditioned for actual cockfighting or for propagation and breeding purposes for eventual use in cockfighting.
- r) Breeder - A person engaged in gamefowl breeding propagation for personal and/or commercial purposes for eventual use in cockfighting.
- s) Cocker (Aficionado) - A person who participates and bets in cockfighting as a sports, amusements, recreation or form of relaxation.
- t) Zoning Law or Ordinance - Either or both national or local City Legislation which logically arranges, prescribes, defines and apportions a given political subdivision into specific land uses at present and future projection, if needs warrant in accordance with the Housing and Land Use Regulatory Board.

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Resolution No. 12875,
Ordinance No. 5003,
Series of 1997, cont'd.:

SEC. 3.- Rules and Regulations - The Rules and Regulations of the Philippine Gamefowl Commission, adopted on June 1, 1981, and the provisions of P.D. 1802 and other amendments, affecting cockpit, cockfighting, and Cockpit personnel and P.D. 449, (Cockfighting Law of 1974) as amended, are hereby adopted by the City as part of this Ordinance, as follows:

COCKPIT AND COCKFIGHTING RULES AND
REGULATIONS

a) Ownership, Operation and Management of Cockpits - Only filipino citizens not otherwise inhibited by existing laws, shall be allowed to own, manage and operate cockpits; provided that cooperative capitalization is encouraged.

b) Establishments of Cockpits - Only one (1) cockpit shall be allowed in each of the eleven (11) political districts namely: Poblacion, Talomo, Agdao, Buhangin, Bunawan, Paquibato, Toril, Tugbok, Calinan, Baguio and Marilog Districts and those that maybe hereafter be created, except in political districts with a population of over one hundred thousand (100,000), two (2) cockpits may be established, maintained, and operated.

c) Cockpit Site and Construction - Cockpits shall be constructed and operated within the appropriate areas as prescribed in the Zoning Ordinance. In the absence of such ordinance, the Sangguniang Panlungsod shall enact an ordinance that no cockpits are constructed within or near existing residential or commercial areas, hospitals, school buildings, churches or other public buildings. Approval or issuance of building permits for the construction of cockpits shall be made in accordance with the building code and the zoning ordinance of the City.

d) Licensing of Cockpits - Subject to the provisions of Book II of Republic Act No. 7160, the Sangguniang Panlungsod shall enact

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Resolution No. 12875,
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Series of 1997, cont'd.:

an ordinance authorizing the issuance of licenses to operate cockpits in the City of Davao pursuant to the provisions of paragraph (v) subsection (3), Section (a). Article 99 of the Local Government Code of 1991.

e) Requirements for Licensing of Cockpits - The following requirements must be fully complied with before the issuance of licenses:

1. New License - Every application for new license to operate or maintain a cockpit shall be accompanied with the following:
 - a) The location and vicinity plan of the cockpit
 - b) The cockpit building plan/design as approved by City Engineer, and a Certification by him to the effect that the cockpit was constructed in accordance with such approved plan/design.
 - c) A certification by the Zoning Administrator to the effect that the cockpit building was constructed in the area allowed by the Zoning Ordinance, and that it is not within a radius of 200 lineal meters from any existing residential or commercial area hospitals, school buildings, churches, or other public buildings.
 - d) Official Receipts showing payment of City taxes, fees, and other levies prescribed by Ordinance No. 230, S. 1991, as amended, and other ordinances that may hereafter be promulgated by the Sangguniang Panlungsod.
 - e) Sanitary Permit/Clearance.
2. Annual Renewal. Every application for the annual renewal of a license to operate or manage a cockpit shall be submitted not later than the last working day of December of each year, and shall be accompanied with the following:

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Resolution No. 12875,
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Series of 1997, cont'd.:

a) Official Receipts showing payment of City Taxes, fees and other levies as prescribed in Ordinance No. 230, may hereafter be promulgated by the Sangguniang Panlungsod;

b) In case the cockpit was constructed more than ten (10) years before the date of renewal application, a Certification from the City Engineer to the effect that such cockpit is free from material, structural or other physical hazards.

f) Registration of Cockpits. - All cockpits in Davao City shall register with the Office of the City Mayor, through the Business Bureau. No cockpit shall be allowed to operate without proper registration certificate being secured not later than January 20 annually.

g) Registration Certificate - In order to secure a Registration Certificate, the applicant shall submit the following documents:

1. An application stating therein the name of the cockpit
2. A copy of the location and vicinity plan of the cockpit
3. A copy of the cockpit building plan/design
4. A certified copy of the Mayor's Permit/License
5. A copy of the Sanitary Permit/Clearance
6. A xerox copy/copies of official receipts of payments
7. 2 perspective photographs of the cockpit, and
8. A list of all duly licensed personnel and copy of their perspective licenses

h) Holding of Cockfights - Except as provided in this ordinance, cockfighting shall be allowed only in licensed cockpits, during Sundays and Legal Holidays, and during local fiestas, for not more than three (3) days. It may also be held during City Agricultural Commercial or Industrial Fairs, carnivals or expositions, for a similar period of three (3) days upon resolution of the Sangguniang Panlungsod;

Resolution No. 12875,
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Provided, That no cockfighting shall be held on December 30 (Rizal Day), June 12 (Philippine Independence Day), November 30 National Heroes Day), Holy Thursday, Good Friday, Election and Referendum Day and during Registration Days for such election or referendum.

i) Cockfighting for Entertainment of Tourists or for Charitable Purposes. - Subject to the preceding subsection hereof, the City Mayor may also allow the holding of cockfighting for the entertainment of foreign dignitaries or for tourist, or for returning filipinos, commonly known as "Balikbayan", or for the support of national or city fund-raising campaigns for charitable purposes, as may be authorized by the President or the Sangguniang Panlungsod, upon the latter's resolution, in licensed cockpits; Provided that this privilege shall be extended for only one (1) time, for a period not exceeding three (3) days, within a year in the City or in each of the political districts.

j) Other Games During Prescribed Cockfights. - No gambling of any kind shall be permitted on the premises of the cockpit or place of cockfighting during, cockfights. The owner, manager or lessees of such cockpit and the violators of this injunction shall be criminally liable under Section 12 hereof.

k) Special Permits:

1. Special permits can be issued only under the circumstances enumerated in sub-paragraphs (h) and (i) above.
Provided, that derbies and cockfighting covered by these permits shall be held only on days other than Sundays and Legal Holidays.
2. No special cockfights shall be allowed unless authorized by the Sangguniang Panlungsod through an approved resolution at least 30 days before the event.

Resolution No. 12875,
Ordinance No. 5003,
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3. Every application shall be signed by the owner/operator of licensee of the cockpit where such special cockfights are to be held, and countersigned by the promoter or a representative of the beneficiary, to be supported with the necessary documents, as follows:
 - a) A copy of Presidential or Mayor's Proclamation authorizing the fund raising campaign;
 - b) Letter request of the beneficiary to the cockpit owner, operator or licensee to stage special cockfights in a particular cockpit;
 - c) Resolution of the Sangguniang Panlungsod during official town fiestas and agricultural, industrial or commercial fairs, carnivals or expositions;
 - d) Resolution of the Sangguniang Panlungsod for the support of national fund raising campaigns for charitable or other purposes as may be authorized by the Office of the President of the City Mayor.
4. No international cockfight derby may be held without an approved resolution by the Sangguniang Panlungsod authorizing the same for the promotion of not more than eight (8) international cockfight derbies every year in Davao City, for the support of national fund-raising campaigns as may be authorized by the Office of the President, upon application of duly qualified promoters and countersigned by the owner/operator or licensee of the cockpit. Such application shall be filed at least sixty (60) days before the scheduled international cockfight derby. In all these cases, the above requirements are necessary.
5. Every application for an international cockfight derby

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Resolution No. 12875,
Ordinance No. 5003,
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shall be supported with the following documents:

- a) A copy of Proclamation authorizing the fund-raising campaign;
- b) Letter request from the beneficiary for the holding of an international derby in a particular cockpit; and
- c) A list of expected foreign and local participants.

1) Prohibition Against Persons - No person less than fifteen (15) years of age shall be allowed inside the premises of the cockpit during cockfight. The Operator, manager or licensee shall be responsible for the strict compliance of this rule.

SEC. 4.- Registration of Breeders. - All breeders of gamefowl are required to register with the City Agriculturist. The City Agriculturist shall furnish the office of the City Mayor, copy furnished the Sangguniang Panlungsod, with a complete record of duly registered breeders.

SEC. 5.- License Fees for Cockpits - For this purpose, the annual taxes shall be collected by the City Treasurer, as follows:

- a) In the Poblacion, Talomo, Agdao and Buhangin - - - - - P 5,000.00
- b) Toril, Tugbok, Calinan and Bunawan - 2,000.00
- c) In other Districts - - - - - 1,000.00

SEC. 6.- Amusements Tax on Admission

- a) Imposition of Tax - There is being levied and imposed upon the proprietor, lessee operator or promoter of cockpits that charge admission or entrance fees, within the territorial jurisdiction of the City of Davao, a tax on admission fee in addition to the taxes and fees imposed under Section 5 and 9 hereof.

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Resolution No 12875,
Ordinance No. 5003,
Series of 1997, cont'd.:

b) Exemption - The tax herein imposed do not apply in the following cases, provided that exemption should first be obtained for this purpose through an approved resolution of the Sangguniang Panlungsod, upon recommendation of the City Treasurer:

1. Where the admission fees are collected for in behalf of charitable, educational or religious institutions or associations who are declared by law or presidential proclamation as exempted from the payment of amusement tax, provided, further, that such exhibition, show, performance and the like shall be limited to only three (3) days in a calendar Year.
2. Provided, Further, that said exemptions shall be applicable only to the share of the sponsoring exempt institutions or organizations as aforementioned. However, the remaining proceeds, including those accruing to the promoter, shall be subject to the payment of amusement tax in accordance with the above rates.

The City Treasurer shall promulgate rules and regulations necessary for the effective implementation of the provision of paragraph (b) of this section, subject to the approval by the City Mayor.

c) Time of Payment - The taxes herein imposed shall be collected as part and not in addition to the price of admission tickets at the time patrons or customers are admitted to the amusement places or establishments.

The taxes herein above imposed shall be and payable within first five (5) days of the month next following that for which they are due, by the proprietor, lessee, operator and promoter, and such taxes to be determined on the basis

Resolution No. 12875,
Ordinance No. 5003,
Series of 1997, cont'd.:

of a true and complete return of the amount of
gross receipts derived during the proceeding month.

If the tax is not paid within the time fixed above, the
taxpayer shall be subject to such surcharges, interest
and penalties prescribed by this ordinance.

d) Administrative Provisions.

1. Remittance of Tax Surcharge for late remittance . -

The proprietor, lessee, operator, or promoter of
cockpits shall withhold the amusements tax on ad-
mission.

The amusement tax withheld shall be remitted to the City
Treasurer within the first five (5) days of the month, fol-
lowing each month. The proprietor, lessee, operator, or
promoter concerned shall make a complete return of the gross
receipts derived during the proceeding month which shall be
the basis for determining the tax due.

Failure to pay the tax within the time fixed herein-
above shall render those concerned liable to a surcharge
of twenty-five percent (25%) of the original amount plus
an interest at the rate of fourteen percent (14%) per annum
on the amount due until the same is fully paid. In case
of willful neglect to file the return and pay the tax within
the time required, or fraudulent return or a false return
is willfully made, the taxpayer shall be subject to sur-
charge of fifty percent (50%) of the correct tax due plus
fourteen percent (14%) interest per annum from due date
until the same is fully paid.

2. Ticket used as basis in paying the tax - Tickets will
be used for collecting the amusement tax imposed in this
Section.

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Resolution No. 12875,
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Operators of cockpits shall keep a notice in big legible letters or numbers posed in a conspicuous place in front of the ticket booths showing the total admission price, which will include as part thereof the city amusement taxes corresponding to each of kind of ticket.

3. Form of tickets, their registration .- Every proprietor, lessee operator or promoter of cockpit shall provide tickets which shall be serially numbered, indicating therein the name of the amusement place and the fee subject for admission. All tickets to be used whether regular, special or complimentary or employee's pass shall be presented to the Office of the City Treasurer for registration. Whenever there is change in the admission fee after registration, a notice to that effect shall be registered with the City Treasurer and be conspicuously posted in a place of business for the information of the public. Tickets presented at the gate or entrance shall be cut into three parts, the 1st part shall be returned to the customer, the 2nd part to be retained by the management, and the 3rd part shall be dropped in the CTO drop box, supplied by the City Treasurer. The three (3) parts of a ticket shall bear the same number/ Sub-numbering of such tickets are strictly and the use of slugs and other substitutes for the admission tickets are strictly prohibited.

4. Verification and Inspection of Cockpits. - The City Treasurer shall post an employee at the gate of cockpits for the purpose of verifying all tickets being sold thereat.

(e) Applicability Clause - All other matters relating to the operation of amusement places or establishments shall be governed by pertinent laws, rules and regulations.

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Resolution No. 12875,
Ordinance No. 5003,
Series of 1997, cont'd.:

SEC. 7. - Cockfighting Officials - The following cockfighting officials are required to register with the Business Bureau, City Mayor's Office.

1. Promoters
2. Cockpit Managers
3. Referees (Sentenciadores)
4. Bet-Takers (Kristos)
5. Bet-Manager (Kasadors)
6. Gaffers (Mananaris)

SEC. 8- Licensing of Cockfighting Officials - Promoter, cockpit managers, referees, bet-takers, bet-manager, or gaffers shall not act as such in any authorized cockfighting without first securing a license renewable every year on their birthmonths from the City Mayor and the corresponding taxes, fees, and charges paid to the City Treasurer, in accordance with this ordinance. Only licensed cockfithting officials shall officiate in all kinds of cockfighting authorized in this ordinance.

SEC. 9 - Fees - In addition to the taxes, fees, and other levies imposed by the City, under Section 5 and 6 hereof, the following fees shall be paid to the City Treasurer, pursuant to the provisions of the Local Government Code (R.A. 71600) before any operation or activity can be conducted.

COCKPIT AND COCKFIGHTING FEES AND CHARGES

1. Application filing fee - ₱ 20.00
2. For cockpit registration (annually):
 - a) Cockpit located:
 - (1) In the Poblacion (Dist. 1) - 750.00
 - (2) Other places - 500.00
 - b) Ocular Inspection fee - 300.00

Resolution No. 12875,
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3. For registration of cockpit personnel (Annually):

- a) Operator, general manager, promoter, host,
 or such other terms applied to persons
 promoting or hosting a cockfight - P200.00
- b) Cockpit Manager - 100.00
- c) Referee (Sentenciador) - 100.00
- d) Cashier - 100.00
- e) Bet-Manager (Maciador/Kasador) - 100.00
- f) Derby Matchmaker - 100.00
- g) Bet-Taker (Kristo) - 50.00
- h) Gaffer (Mananari) - 50.00

4. Special Permit Fees:

- a) International Derby -P5,000.00
- b) Special Cockfights (Pintakasi) - 1,000.00

5. Fee for Promoter of each Derby:

- a) 2-cock derby -P 250.00
- b) 3-cock derby - 500.00
- c) 4-cock derby - 750.00
- d) 5-cock derby - 1,000.00

6. For Special Derby Assessment :

- a) for every winning cock - 50.00

7. Filing fee for all complaints, petitions

and/or application for proper equitable

- reliefs provided for in this Code - 500.00

SEC. 10.- Anti-Fraud Measures - All persons involved in cock-
 fightings and in the operation of cockpits, including, among others,
 the owner or operator of cockpits, the cockpit officials, the cockers
 (aficionados) and government officers involved in the issuance of permits
 or licenses and the inspection of cockpits, must observe utmost honesty,
 fair play, good faith, and peace and order.

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Resolution No. 12875,
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SEC. 11.- Complaints and Protest - The Legal Officer shall take cognizance of complaints and protests relative to the operation and management of cockpits or the conduct of cockfights, and violations of this Ordinance, which complaints and protests must be in writing and under oath. The City Legal Office shall prescribe the rules and procedures governing such cases, subject to the approval of the City Mayor.

SEC. 12.- Suppletory Rules - In all cases not covered herein, the Rules and Regulations of the Philippine Gamefowl Commission, adopted on June 1, 1981, the provisions of P.D. 1802 and other amendment, affecting cockpits, cockfighting, and cockpits personnel, and P.D. 449 (Cockfighting Law of 1974) as amended, shall govern.

SEC. 13.- Penal Clause - Any violation of this ordinance shall be penalized by a fine not exceeding the amount of P2,000.00 or an imprisonment of not more than one (1) year or both in the discretion of the Court, and the violator's cock, hens and eggs, and all bets involved in the unlawful activity shall be confiscated in favor of the City Government, turned over to the City Agrisulturist and shall be disposed of by the City Mayor in the mannger provided by law, rules and regulations.

SEC. 14.- Repealing Clause - Sub-Paragraph 21 (a to c) paragraph H, Article 6, chapter IV or Ordinance No. 230, S. 1991, as amended, and all ordinances, rules and regulations which are inconsistent herewith are hereby repealed or modified accordingly.

SEC. 15- Separation Clause - A judicial declaration that a part of this Ordinance is unlawful shall not affect the others.

SEC. 16 - Effectivity - This Ordinance shall commence to take effect upon approval and after the required publications in a newspaper of general circulation.

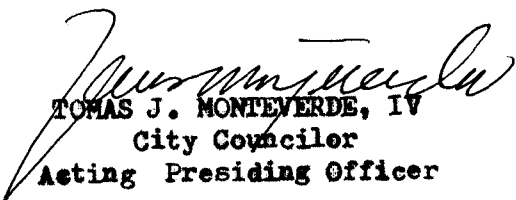
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Ordinance No. 5003,
Series of 1997, cont'd.:

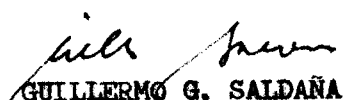
ENACTED: September 12, 1997.

A vote of unanimity has been entered into the records.

APPROVED:


TOMAS J. MONTEVERDE, IV
City Councilor
Acting Presiding Officer

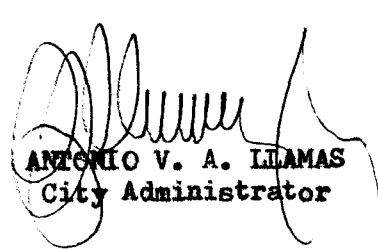
ATTESTED:


GUILLERMO G. SALDAÑA
Secretary
Sangguniang Panlungsod
aba/esa

APPROVED: Oct. 14/97, 1997


RODRIGO R. DUTERTE
City Mayor II
City of Davao

ATTESTED:


ANTONIO V. A. LLAMAS
City Administrator